

5134 Ute Hwy

S. 28 T3N R70W

10137



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S

28

T3N

R70W

10137

OWNER Martin Marietta Corp PERMIT NO. 10137

ADDRESS Lynn, Ala DATE 9-22-67

LEGAL LOT 21 BLK. 3N SUBDIVISION R 70W

SECTION 28

12897 N 51st St.

Sign

13155

10-16-70

10-3-77 → 22476

APPLICATION FOR BOULDER COUNTY BUILDING PERMIT

Date September 22, 1967

Owner Martin Marietta Corporation Address 1111 S. Colorado Blvd.
Denver, Colorado Phone 757-5471
 Contractor Peter Kiewit & Sons Co Address 7711 East 111st Ave.
Denver, Colorado Phone 756-3655

☐ Residence ☐ Garage ☒ Other Modern Cement Plant Valuation 15 million dollars
 Stories _____ Rooms _____ Area _____ Basement _____ Type of Construction concrete & steel

Address of Proposed Building For additional information please see August 18, 1967

Legal Description of Property application for Building Permit filed by Martin
Marietta Corporation and Exhibits attached to or filed
therewith, all of which are incorporated herein by reference.

Frontage of Lot _____ Area of Lot _____ Zone GI-General Industrial
 Set backs: Front _____ Side _____ Side _____ Rear _____
 Frontage on Public Street or Road Name or No. _____ Sanitation Approval YES
 Remarks: _____

PLOT PLAN

Show size of lot, location of buildings, location of septic tank and leach field; all must be drawn to scale.

Owner hereby certifies that the above information is correct and agree to construct this building in accordance with the plot, building plans and specifications submitted herewith, and in strict compliance with all the provisions of the Zoning Ordinance, Building Code, Electrical Code, and Health and Plumbing Regulations of the County of Boulder, as modified by order of the Board of Adjustment, Boulder County, Colorado in Docket No. 196, entered on September 21, 1967, substantially

*Owner's Cement Lime Division does business as the Rocky Mountain Cement Company

General Agent By Martin Marietta Corporation Attorney and Agent

APPLICATION FOR BOULDER COUNTY BUILDING PERMIT

Date August 18, 1967

Owner Martin Marietta Corporation Address 1111 S. Colorado Blvd. Denver, Colorado Phone 757-5471

Contractor Peter Kiewit & Sons Co Address 7711 East Iliff Ave. Denver, Colorado Phone 756-3655

☐ Residence ☐ Garage ☒ Other Modern Cement Plant Valuation 15 million dollars

See attached exhibits
Stories _____ Rooms _____ Area _____ Basement _____ Type of Construction concrete & steel

Address of Proposed Building Approximately one mile southeast of Lyons, Colorado

Legal Description of Property Approximately 681 acres of land, more specifically described in Exhibit A attached hereto, and being a part of a total tract of approximately 1140 acres all zoned GI-General Industrial.

Frontage of Lot More than 40' Area of Lot square feet Zone GI-General Industrial
More than 15,000

Set backs: Front More than 60' Sides 10' Side N/A Rear More than 20'

Frontage on Public Street or Road Name or No. N/A Sanitation Approval In process

Remarks:

PLOT PLAN

Show size of lot, location of buildings, location of septic tank and leach field; all must be drawn to scale.

See: Exhibit B: scale map of property showing the approximate plant location thereon.

Exhibit C: plant layout and arrangement.

Exhibit D: plant perspective.

Exhibit E: summary of the heights of plant structures above 50 feet.

Exhibit F: construction plans.

RECEIVED

AUG 21 '67

DEPT. OF
DEVELOPMENT

OWNER hereby certifies that the above information is correct and agree to construct this building in accordance with the plot, building plans and specifications submitted herewith, and in strict compliance with all the provisions of the Zoning Ordinance, Building Code, Electrical Code, and Health and Plumbing Regulations of the County of Boulder, except the height restrictions contained in paragraph 14.8, Section XIV, p. 9, of the 1965 Zoning Resolution of Boulder County.

*Owner's Cement Lime Division does business as the Rocky Mountain Cement Company.

MARTIN MARIETTA CORPORATION
By Donald H. Kelsey
Attorney and Agent

Longmont Drug Bldg.
Longmont, Colorado
776-5743

See Reverse side for additional information.

EXHIBIT E

(Attached to application for Building
Permit by Martin Marietta Corporation)

The heights of the major plant structures will be approximately
as follows:

<u>Description</u>	<u>Maximum Height Clearance</u>
Crushing Plant	- 100'
Raw Silos	- 180'
Mill Motor Room	- 70'
Mill Structure	- 90'
Blending & Kiln Feed Silos	- 190'
Burner Building	- 80'
Kiln	- 60'
Kiln Feed End & Radiation Tubes	- 150'
Kiln Dust Collector	- 80'
Kiln Dust Bin	- 70'
Clinker Silos	- 180'
Cement Silos	- 180'
Packhouse	- 90'
Control Room	- 60'

Kiln Feed End & Radiation Tubes: 150'

Kiln Dust Collector: 80'

Kiln Dust Bin: 70'

Clinker Silos: 180'

Cement Silos: 180'

Packhouse: 90'

Control Room: 60'

Such variance may be granted without substantial detriment to the public good and without substantially impairing the intent and purposes of the County Zoning Resolution.

EXHIBIT A
to
APPLICATION FOR VARIANCE REQUEST

Appeal to the Board of Adjustment of Boulder County, Colorado based upon the following difficulty or hardship as defined in C.R.S. 106-2-17, 1963: There are unique and exceptionally rich deposits of limestone and shale in the property; these minerals are the basic ingredients of cement. These were recognized by the Boulder Board of County Commissioners in rezoning the subject property from agricultural to industrial uses.

Martin Marietta Corporation, whose Cement Line Division does business as the Rocky Mountain Cement Company, wishes to construct a modern cement plant on the property to make full use of these deposits and thereby develop the land to the fullest extent possible. Such a plant cannot be constructed within the present 50-foot height limitation contained in the Boulder County Zoning Resolution, Section XIV, paragraph 14.8; thus strict application of this height limitation would result in peculiar and exceptional practical difficulties to and exceptional and undue hardship upon Martin Marietta Corporation. It would be unable to put the property to its highest and best use and would be unable to use it for industrial purposes. Therefore a variance is requested to permit the following maximum height limitations:

Crushing Plant: 100'
Raw Silos: 180'
Mill Motor Room: 70'
Mill Structure: 90'
Blending & Kiln Feed Silos: 180'
Burner Building: 80'
Kiln: 60'

EXHIBIT A

(Attached to application for Building
Permit by Martin Marietta Corporation)

The following described property located in Township
3 North, Range 70 West of the 6th P.M., Boulder County, Colorado:

- Section 21: $S\frac{1}{2}SW\frac{1}{4}$ EXCEPT a tract of land containing approximately 20 acres described as follows: Commencing at the Northeast corner of the $S\frac{1}{2}SW\frac{1}{4}$, Section 21, T. 3 N., R. 70 W. of the 6th P.M., thence south $89^{\circ}22'$ west 500.00 feet along the north line of said $S\frac{1}{2}SW\frac{1}{4}$ to the true point of beginning, thence south $89^{\circ}22'$ west 1759.14 feet along the north line of said $S\frac{1}{2}SW\frac{1}{4}$, thence south $0^{\circ}38'$ east 500.00 feet at right angles to the north line of said $S\frac{1}{2}SW\frac{1}{4}$, thence north $89^{\circ}22'$ east 1489.14 feet parallel to the north line of said $S\frac{1}{2}SW\frac{1}{4}$, thence north $76^{\circ}26'$ east 277.02 feet, thence north $0^{\circ}38'$ west 438.00 feet at right angles to the north line of said $S\frac{1}{2}SW\frac{1}{4}$ to the true point of beginning.
- Section 27: The west 10 acres of the $SW\frac{1}{4}NW\frac{1}{4}$ and a tract containing 6 acres being a square of 6 acres out of the Northwest corner of the $NW\frac{1}{4}SW\frac{1}{4}$.
- Section 28: All EXCEPT the $N\frac{1}{2}NE\frac{1}{4}$, and EXCEPT a tract of land containing approximately 5 acres described as follows: Beginning at the Southeast corner of Section 28, T. 3 N., R. 70 W. of the 6th P.M., thence north $0^{\circ}18'$ west 246.00 feet along the east line of said Section 28, thence south $89^{\circ}29'10''$ west 820.86 feet parallel to the south line of said section 28, thence south $0^{\circ}30'50''$ east 246.00 feet at right angles to the south line of said Section 28 to a point on the south line of said Section 28, thence north $89^{\circ}29'10''$ east approximately 820.86 feet along the south line of said Section 28 to the point of beginning.
- Section 29: $E\frac{1}{2}SE\frac{1}{4}NE\frac{1}{4}$ and $E\frac{1}{2}NE\frac{1}{4}SE\frac{1}{4}$ and $NE\frac{1}{4}SE\frac{1}{4}SE\frac{1}{4}$.

28
COUNTY OF BOULDER
OFFICE OF BUILDING INSPECTOR

PERMIT

Nº 10137

Date 9-22-67

PERMIT is hereby issued to (build) (erect) (remodel) Modern Cement Plant

Owner Martin Marietta Corp. Address 1111 S. Colorado Blvd. Den.

Contractor Peter Hewitt & Sons Co. Address 7711 East 11th Ave Den.

Address of Proposed Building _____

Legal Description Plant located in the NW 1/4 of Sec 28
T3N R70W of the 6th P.M. Boulder County Colo.

Setback Front 100' + Side 100' + Side 100' + Rear 100' +

Valuation 15,000.00 Area of Building 1 Type of Construction Concrete & Steel

Permit Fee \$ 15,115.50 Use of Building Manufacturing Cement Zone E.I.

Inspection Fee \$ _____ Remarks: Building Hqts approved by B/H.

Total \$ 15,115.50 9-21-67 Permit # 196

Approved Robert A. Palmer
Chief Building Inspector.

Note:—This permit not valid without official "PAID" stamp from Boulder County Building Inspection Department.

INSPECTION RECORD

Type of Inspection	Rough	Final	Inspector	Date
Footing & Foundation				
Frame				
Plumbing				
Electric				
Setback				
Sign				
Other				

Remarks:
